

ORIGINAL

(S E R V E D)
(SEPTEMBER 17, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

September 17, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

STIPULATION AND ORDER DISMISSING CERTAIN CLAIMS

By Order dated August 20, 1992, the undersigned directed the parties to prepare a draft Order dismissing those matters which they can agree are no longer in issue.

Pursuant to that Order, counsel for complainants and respondents have conferred, and agreed that certain claims are no longer at issue in this proceeding and should accordingly be dismissed. In the circumstances, the following claims are dismissed:

1. Any and all claims alleging violations of section 14 (Fourth), section 16 (Second), or section 17 of the Shipping Act, 1916;

2. Any and all claims alleging violations of section 16 (First) of the Shipping Act, 1916, except for claims directed to provisions in respondents' tariffs governing the mixing of household goods in shipments including other commodities; and
3. Any and all claims that the rate actions identified in Count II of the Amended Complaint constituted a General Rate Increase within the meaning of section 1(2) of the Intercoastal Shipping Act, 1933.


Frederick M. Dolan, Jr.
Administrative Law Judge